

Amendment No. 1 to HB1666

White
Signature of Sponsor

AMEND Senate Bill No. 1665*

House Bill No. 1666

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-5102(a)(3), is amended by deleting the language "names and pronouns" and substituting instead "names, pronouns, and honorifics".

SECTION 2. Tennessee Code Annotated, Section 49-6-5102(b)(1)(B), is amended by deleting the subdivision and substituting instead:

(B) Preferred pronoun or honorific of a student, teacher, employee, or contractor of a public school or LEA, if the individual's preferred pronoun is not consistent with the individual's sex or the individual's preferred honorific is not consistent with the individual's sex;

SECTION 3. Tennessee Code Annotated, Section 49-6-5102(b)(2)(B), is amended by deleting the subdivision and substituting instead:

(B) A pronoun or honorific that is consistent with the sex of the student, teacher, employee, or contractor to whom the student, teacher, employee, or contractor is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific; or

SECTION 4. Tennessee Code Annotated, Section 49-6-5102(b)(3)(B), is amended by deleting the subdivision and substituting instead:

(B) The preferred pronoun or honorific of a student, teacher, employee, or contractor of a public school or LEA, if the individual's preferred pronoun is inconsistent

with the individual's sex or the individual's preferred honorific is not consistent with the individual's sex.

SECTION 5. Tennessee Code Annotated, Section 49-6-5102(c)(2), is amended by deleting the subdivision and substituting instead:

(2) A pronoun or honorific that is consistent with the sex of the individual to whom the student, teacher, employee, or contractor is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific.

SECTION 6. Tennessee Code Annotated, Section 49-6-5102(d)(1), is amended by deleting the language "pronouns" wherever it appears and substituting instead "pronouns or honorifics".

SECTION 7. Tennessee Code Annotated, Section 49-6-5102(d), is amended by deleting subdivisions (2) and (3) and substituting instead:

(2) A teacher, employee, or contractor of a public school or LEA shall not knowingly address or refer to an unemancipated minor student who is enrolled in the public school or LEA by a name other than the student's legal name, or a derivative thereof, by a pronoun or title that is inconsistent with the student's sex, or an honorific that is not consistent with the individual's sex without first obtaining written consent to do so from the unemancipated minor student's parent or legal guardian.

(3) A teacher, employee, or contractor of a public school or LEA shall not ask a student to refer to the teacher, employee, or contractor using a pronoun that is inconsistent with the sex of the teacher, employee, or contractor, or using an honorific that is not consistent with the sex of the teacher, employee, or contractor.

SECTION 8. Tennessee Code Annotated, Section 49-6-5102(e), is amended by deleting the language "preferred name or preferred pronoun" wherever it appears in subdivision (1) and substituting instead "preferred name, pronoun, or honorific" and by deleting the language "pronouns" wherever it appears in subdivision (2) and substituting instead "pronouns or honorifics".

SECTION 9. Tennessee Code Annotated, Section 49-7-2409(a)(3), is amended by deleting the language "names or pronouns" and substituting instead "names, pronouns, and honorifics".

SECTION 10. Tennessee Code Annotated, Section 49-7-2409(b)(1)(B), is amended by deleting the subdivision and substituting instead:

(B) Preferred pronoun or honorific of a student, faculty member, employee, or contractor, if the individual's preferred pronoun is not consistent with the individual's sex or the individual's preferred honorific is not consistent with the individual's sex;

SECTION 11. Tennessee Code Annotated, Section 49-7-2409(b)(2)(B), is amended by deleting the subdivision and substituting instead:

(B) A pronoun or honorific that is consistent with the sex of the student, faculty member, employee, or contractor to whom the student, faculty member, employee, or contractor is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific; or

SECTION 12. Tennessee Code Annotated, Section 49-7-2409(b)(3)(B), is amended by deleting the subdivision and substituting instead:

(B) Preferred pronoun or honorific of a student, faculty member, employee, or contractor, if the individual's preferred pronoun is inconsistent with the individual's sex or the individual's preferred honorific is not consistent with the individual's sex.

SECTION 13. Tennessee Code Annotated, Section 49-7-2409(c)(2), is amended by deleting the subdivision and substituting instead:

(2) A pronoun or honorific that is consistent with the sex of the individual to whom the student, faculty member, employee, or contractor is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific.

SECTION 14. Tennessee Code Annotated, Section 49-7-2409(d), is amended by deleting the language "pronouns" and substituting instead "pronouns or honorifics".

SECTION 15. Tennessee Code Annotated, Section 8-50-121(a)(3), is amended by deleting the language "names and pronouns" and substituting instead "names, pronouns, and honorifics".

SECTION 16. Tennessee Code Annotated, Section 8-50-121(b)(1)(B), is amended by deleting the subdivision and substituting instead:

(B) Preferred pronoun or honorific of a state employee, contractor of the state, or a person with whom the state employee or contractor of the state is communicating for purposes of, and within the scope of, the employee's state employment or the contractor's contract with the state, if the individual's preferred pronoun is not consistent with the individual's sex or the individual's preferred honorific not consistent with the individual's sex;

SECTION 17. Tennessee Code Annotated, Section 8-50-121(b)(2)(B), is amended by deleting the subdivision and substituting instead:

(B) A pronoun or honorific to refer to a state employee, contractor of the state, or a person with whom the state employee or contractor of the state is communicating for purposes of, and within the scope of, the employee's state employment or the contractor's contract with the state that is consistent with the sex of the individual to whom the state employee or contractor of the state is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific; or

SECTION 18. Tennessee Code Annotated, Section 8-50-121(b)(3)(B), is amended by deleting the subdivision and substituting instead:

(B) Preferred pronoun or honorific of a state employee, contractor of the state, or a person with whom the state employee or contractor of the state is communicating for purposes of, and within the scope of, the employee's state employment or the contractor's contract with the state, if the individual's preferred pronoun is inconsistent with the individual's sex or the individual's preferred honorific is not consistent with the individual's sex.

SECTION 19. Tennessee Code Annotated, Section 8-50-121(c)(2), is amended by deleting the subdivision and substituting instead:

(2) A pronoun or honorific that is consistent with the sex of the individual to whom the state employee is referring, even if the pronoun or honorific is not the individual's preferred pronoun or honorific.

SECTION 20. Tennessee Code Annotated, Section 8-50-121(d), is amended by deleting the language "pronouns" wherever it appears and substituting instead "pronouns or honorifics".

SECTION 21. This act takes effect upon becoming a law, the public welfare requiring it.